IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
COURT-II

CP (CAA) 44/AHM/2022
in
CA (CAA) 34/AHM/2022

[Sections 230-232 and other applicable provisions of the Companies Act, 2013 r.w. Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

In the matter of Scheme of Arrangement

For Demerger of

Rajdhani Investments & Agencies Private Limited,
(Petitioner Company No. 1/Demerging Company)

into

Sidhant Real Estate Developers and Services Private Limited
(Petitioner Company No. 2/ Resulting Company)

And

Their Respective Shareholders

Order Pronounced on: 11.01.2023

CORAM:
DR. DEEPTI MUKESH
HON'BLE MEMBER (JUDICIAL)
AJAI DAS MEHROTRA
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

M/s Rajdhani Investments & Agencies Private Limited,

(CIN: U65993GJ1972PTC097502)
Registered office at;
MC Shah House, 1/B, FF, Avantika Society,
Nr. Naranpura Railway Crossing, Naranpura,
Ahmedabad-380013, Gujarat.

... Petitioner Company No. 1/
Demerging Company

AND

M/s Sidhant Real Estate Developers and Services Private Limited
(CIN: U70103GJ2020PTC112114)
Registered office at;
MC Shah House, 1/B, FF, Avantika Society,
Nr. Naranpura Railway Crossing, Naranpura,
Ahmedabad-380013, Gujarat.

... Petitioner Company No. 2/Resulting Company

For the Petitioners:	Sr. Advocate, Mr. U K Chaudhary a/w FCA, Mr. Kiran Shah.
For the Income Tax Dept:	Advocate, Ms. Pankti Shah for Advocate, Ms. Maithili Mehta.
For the RD :	Assistant Director, Mr. B R Ambedkar.

ORDER

1. The present joint petition is filed under Section 230-232 with other applicable provisions of the Companies Act, 2013 (hereinafter referred to as "the Act"), read with the Companies (Compromise, Arrangement, and Amalgamations) Rules, 2016 for sanctioning Scheme of Arrangement in

the nature of Demerger of Real Estate Undertaking of M/s Rajdhani Investments & Agencies Private Limited (herein after referred to as the Demerging Company) and amalgamation/merger into M/s Sidhant Real Estate Developers and Services Private Limited (herein after referred to as the Resulting Company) with effect from the Appointed Date on the agreed terms and conditions as set out in the Composite Scheme annexed in accordance with Sections 230 to 232 of the Companies Act, 2013.

2. From the records, it is seen that the 1st motion application seeking directions for dispensation of the meeting of the Equity Shareholders, Secured and Unsecured Creditors of the Petitioner Companies was allowed vide order dated 30.05.2022 dispensing the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Petitioner Companies and directions were issued for issuance of notice to the concerned Statutory Authorities. The said directions were complied with and Affidavit of compliance is on record.

3. The Petitioner Companies could not file the 2nd motion joint petition within the time stipulated. The said delay was condoned vide order dated 15.07.2022 and directions were passed to issue notices to the concerned Statutory/Regulatory authorities and also direction was given for publication in the newspapers English daily “Indian Express” and

Gujarati Daily "Sandesh" (both Ahmedabad Edition). Petitioner Companies have filed respective compliance affidavits.

4. In response to notice the Regional Director, North Western Region, MCA filed the report a/w the report of ROC, seeking following directions:

   i) The Resulting Company to comply with the provisions of Section 61 of the Companies Act, 2013 and also as to the payment of stamp duty, registration fees etc. and file the relevant e-form with respective Registrar of Companies.

   ii) Petitioner Companies to undertake the compliance of Section 2(19AA) of the Income Tax Act.

   iii) To pay amount of legal fees/cost to the central government.

5. The Petitioner Companies filed affidavit on 22.09.2022 dealing with the representation of RD, North-Western Region Ahmedabad including response of the Registrar of Companies, Ahmedabad, which is as follows:

   i) Resulting Company vide Members resolution dated 06.07.2022 has increased its Authorized Share capital from Rs. 300,00,00,000/- divided into 1,00,00,000 Equity Shares of Rs. 10/- each and 2,90,00,000 Preference Shares of Rs. 100/- each to Rs. 1500,00,00,000/- divided into 75,00,00,000 Equity Shares of Rs. 10/- each and 7,50,00,000 Preference Shares of Rs. 100/- each by creation of additional 74,00,00,000 Equity Shares of Rs. 10/- each

ranking pari-passu with the existing Equity Shares of the Company and 4,60,00,000 Preference Shares of Rs. 100/- each and had made payment of requisite stamp duty and registration charges to the respective Registrar of Companies against SRN F15021413 and SRN E16167926 both dated 13.07.2022.

ii) Petitioner Companies undertake to comply with Section 2 (19AA) of the Income Tax Act.

iii) Petitioner Companies undertake to make payment of such fees/cost to the Central Government, as and when being imposed and directed by this Tribunal.

6. The Petitioner Companies have filed an affidavit in compliance of order dated 21.10.2022 stating that Petitioner Companies own ready immovable properties which are outside the purview of the provisions of Real Estate (Regulation and Development) Act, 2016 (RERA). The Petitioner Companies have never fallen within the purview of RERA and as on date also, the Petitioner Companies do not have any project undergoing, where they can be classified as Developer/ Promoter in terms of the provisions of RERA.

7. Asst. Director for the RD made a statement that pursuant to the undertaking given by the Petitioner Companies, the RD has no objection to the Scheme, as recorded in the daily order dated 22.11.2022.

8. The Income Tax Department filed its Reports dated 09.09.2022 and 12.09.2022 stating that there are no outstanding dues in relation to Petitioner Companies.

9. The Ld. Counsel for the Income Tax Department appeared and submitted that in view of the undertaking received from the Petitioner Companies, the Department has no objection to the Scheme, as recorded in the daily order dated 22.11.2022.

10. The petitioner companies have filed their respective audited Balance Sheets and Profit and Loss Accounts as on 31.03.2021 and provisional financial statements as on 31.03.2022.

11. It is submitted by both the Petitioner Companies that no proceedings under Section 235 to 251 of the Companies Act, 1956 and/or under Section 206 to 229 of the Companies Act, 2013 are pending or instituted against any of the Petitioner Companies.

12. In compliance with the proviso to sub-section (7) of Section 230 of the Companies Act, 2013, all the Petitioner Companies have placed on record the Certificates of the respective Statutory Auditors confirming that the accounting treatment envisaged under the Scheme of Arrangement, is in compliance with the applicable accounting standards notified by the Central Government in Section 133 of the Companies Act, 2013.

13. The appointed date as stated in the Scheme is the date of approval/sanction of the present Scheme or any other date as may be prescribed by the Hon'ble NCLT/NCLAT.

14. Heard submissions and perused documents placed on record. The approval is accorded by the members and creditors of the Petitioner Companies to the proposed Scheme. The queries/objections raised by the Statutory Authorities have been dealt with by the Petitioner Companies satisfying the respective regulators, who have given their no objection to the Scheme during hearing. The petitioner companies have also filed undertaking to comply with the requirements raised by the respective authorities. As a consequence, sanction is hereby granted to the Scheme under Section 230-232 of the Companies Act, 2013. The Petitioners shall, however, remain bound to comply with the statutory requirements in accordance with law and other directions as pointed by the Regional Director. The schedule of property of the Demerging Company is placed on record through additional affidavit.

15. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action

being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioners.

16. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST etc., or any other charges or payment in accordance with law, or any kind of waiver in respect of any permission/compliance with any other requirement which may be specifically required under any law.

17. **The Scheme is sanctioned with following directions:**

i. The Scheme of Arrangement as annexed herewith as "**Annexure- A**" is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

ii. All the properties mentioned in schedule of assets as "**Annexure-B**", right and powers of the Real Estate Undertaking of the De-merging Company specified in the schedule hereto be transferred without any further act or deed to the Resulting Company and accordingly the same shall, pursuant to Section 232 of the Act, vest in the Resulting Company for all the estate and interest of the Real Estate Undertaking of the De-merging Company therein but subject nevertheless to all charges now affecting the same, if any.

iii. All the liabilities and duties of the Real Estate Undertaking of the De-merging Company, be transferred without further act or deed to the Resulting Company and accordingly the same shall pursuant to Section 232 of the Act, be transferred to and become the liabilities and duties of the Resulting Company.

iv. The Resulting Company shall as proposed in the Scheme and without further application, allot to the members of the Demerging Company, whose name is recorded in the register of members of the Demerging Company on the record date, the shares in the Resulting Company to which they are entitled in the following ratio:

> *"Resulting Company shall without any further act or deed, issue and allot 4,482 equity shares of Rs. 10/- each fully paid up for every equity share held in the Demerging Company to the equity shareholders of the Demerging Company, whose names appear in the register of members maintained with the Depository of Demerging Company on the record date."*

v. All proceedings now pending by or against the De-merging Company relatable to the Real Estate Undertaking be continued by or against the Resulting Company.

vi. All workers / employees of all the Demerged Undertaking of the Demerging Company shall be deemed to become the workers /employees of the Resulting Company with effect from the Appointed Date, and shall stand absorbed in the Resulting Company in accordance with the Scheme without any interruption of service and on term and conditions no less favourable than those on which they are engaged by the

Demerged Undertaking of the Demerging Company, as on the Effective Date.

vii. The Petitioner companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Real Estate Undertaking of Rajdhani Investments & Agencies Pvt. Ltd. (De-merging Company) shall stand transferred to Sidhant Real Estate Developers & Services Pvt. Ltd. (Resulting Company) and the Registrar of Companies shall place all documents relating to the Real Estate Undertaking of Rajdhani Investments & Agencies Pvt. Ltd., to the file kept by him in relation to the said Resulting Company and the files relating to the said two companies shall be treated accordingly.

viii. The legal fees/expenses of the Office of the Regional Director are quantified at Rs. 10,000/- in respect of the Scheme of Arrangement for the petitioner companies to be paid by the petitioner Resulting Company.

ix. All concerned authorities to act on a copy of this order along with the Scheme of Arrangement duly authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the authenticated copy of this order alongwith the Scheme of Arrangement immediately.

x. The Petitioner Companies are directed to lodge a copy of this order, the approved Scheme and separate schedules of immovable assets of the Real Estate Undertaking of Rajdhani

Investments & Agencies Pvt. Ltd., the petitioner De-merging Company attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, on the same within 60 days from the date of the receipt of the order.

xi. The Petitioner Companies are directed to file a copy of this order alongwith a copy of the scheme with the concerned Registrar of Companies, electronically, along with E-form INC-28 as per relevant provisions of the Act.

xii. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

18. Company Petition is allowed and disposed of in terms of the above order.

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AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

Abhishek Steno/Mansi LRA

Annexure "A"
Annexure-A-1 63

SCHEME OF ARRANGEMENT

FOR

DEMERGER OF

REAL ESTATE UNDERTAKING OF

RAJDHANI INVESTMENTS & AGENCIES PRIVATE LIMITED

("Demerged Company")

INTO

SIDHANT REAL ESTATE DEVELOPERS AND SERVICES PRIVATE LIMITED

("Resulting Company")

AND

THEIR RESPECTIVE SHAREHOLDERS

UNDER SECTIONS 230-232 OF THE COMPANIES ACT, 2013

PREAMBLE

WHEREAS this Scheme of Arrangement is presented for demerger of Real Estate Undertaking of Rajdhani Investments & Agencies Private Limited ("**Rajdhani/ Demerged Company**") into Sidhant Real Estate Developers and Services Private Limited ("**Sidhant/Resulting Company**") and their respective shareholders under Sections 230-232 of the Companies Act, 2013 ("the Act") read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, and all other applicable provisions of the Act and Rules, including any statutory modification(s), amendment(s) or re-enactment(s) thereof for the time being in force and consequent capital reduction of the Demerged Company.

That presently, the Demerged Company is having two business undertakings i.e. Investment and Real Estate and the Resulting Company is engaged in Real Estate business. With an intent to segregate Real Estate

undertaking from Investments and to consolidate the Real Estate Undertaking of Demerged Company into Resulting Company, it is proposed to demerge Real Estate Undertaking from Demerged Company. The proposed scheme of demerger of Real Estate Undertaking of the Demerged Company will help in achieving synergies of business operations, cost reduction, economies of scale and focused management control. Post demerger, the Demerged Company will be able to focus on the business of Investments and the Resulting Company will be able to focus on the real estate business, as both require separate expertise, compliance and regulatory approvals, etc. The demerger of Real Estate Undertaking/Demerged Undertaking (as defined hereinafter) of Demerged Company in accordance with this Scheme shall take effect from the Appointed Date and shall be in accordance with section 2(19AA) of the Income Tax Act, 1961.

The Board of Directors of both the companies are of the opinion that the above arrangement would be beneficial to all the stakeholders including shareholders, creditors, employees, if any, of both the companies and all concerned and the Scheme shall not in any manner be prejudicial or adversely affecting the interest of concerned shareholders or directors or creditors or key managerial personnel or promoters or non-promoter members or employees of the companies or general public at large. Further there is no material interest of directors or key managerial personnel of the companies in the present Scheme of Arrangement.

This Scheme of Arrangement provides for the demerger of Real Estate Undertaking of Demerged Company into Resulting Company. This Scheme also provides for matters connected therewith and the Scheme is broadly divided into the following sections:

Part - A: General description of the Demerged Company and the Resulting Company and objectives / Rationale of the Scheme.

Part - B: Definitions, share capital and details of promoters.

Part - C: Demerger and transfer/ vesting of Demerged Undertaking of Rajdhani (the Demerged Company) into Sidhant (the Resulting Company) and consequent capital reduction of the Demerged Company.

Part - D: Share capital, dividends, rights and entitlement of members of Demerged Company and Resulting Company and other matters.

Part - E: Accounting treatment for Section-C of the Scheme.

Part – F: General terms and conditions.

PART- A

GENERAL DESCRIPTION OF THE COMPANIES AND OBJECTIVE OF THE SCHEME

1. Rajdhani Investments & Agencies Private Limited **("Demerged Company/ Rajdhani")** (CIN U65993GJ1972PTC097502) was incorporated as a private limited company on November 27, 1972 under the provisions of the Companies Act, 1956. That the Demerged company is an unregistered core investment company in terms of Core Investment Companies (Reserve Bank) Directions, 2016, as amended from time to time. The Main objects of the Demerged Company include:

   (i) to hold investments in equity shares (including instruments which are compulsorily convertible into equity shares within a period not exceeding 10 years from the date of its issue or such other period as may be permissible in accordance with applicable laws), preference shares, bonds, debentures, debt or loans in its group companies as specified in accordance with applicable laws, including such laws as may be specified by the Reserve Bank of India, from time to time,

(ii) To invest in bank deposits, money market instruments including money market mutual funds, government securities and bonds or debentures issued by group companies, granting of loans to group companies and issuing guarantees on behalf of group companies in accordance with applicable laws, including such laws as may be specified by the Reserve Bank of India, from time to time.

(iii) To acquire / hold investments in the companies / representation offices registered, incorporated or recognized in or under the laws of any place outside India in accordance with applicable laws, including such laws as may be specified by the Reserve Bank of India, from time to time.

(iv) To purchase, to take on lease / license or in exchange, hire or otherwise acquire any immovable property(ies) including any real estate property(ies) which may be commercial in nature and all types of building(s) and structure(s) such as business centre(s), house(s), flat(s), apartment(s), office(s), warehouse(s), shop(s), factory(ies), hospital(s), hotel(s), holiday resort(s), shopping cum residential complex(es) and IT Park(s) and any rights and privileges in relation thereto which the Company may think necessary or convenient for the purposes of its business.

(v) To carry on the trade or business of buying, selling, reselling, exchanging, altering, importing, exporting, hiring, letting on hire or distributing, merchandise, engineering goods, electrical goods and appliances, machinery, components, food stuffs, building materials, minerals, agricultural products, chemicals, pharmaceuticals, liquors, raw, semi manufactured and manufactured food stuffs, textiles, metals, bullion, jewellery, watches, furniture, cinematic goods, ceramics, sanitary goods, rubber and leather goods, automobiles, ships, and aircraft either on wholesale or retail or agency basis.

(vi) To act as selling agents, dealers, distributors or representatives of manufacturers of all or any of the aforesaid goods.

(vii) To develop, construct, repair, maintain, decorate, improve, remodel, build, operate and manage business centre(s) and other immovable property(ies) and structure(s) of all nature and description including shopping mall(s), commercial complex(es), shopping plaza(s), departmental store(s), hypermarket(s), shop(s), business house(s), office(s), residential estate(s), hotel(s), resort(s), organization(s), exhibition centre(s), conference centre(s), and to transfer the same to such other person(s) / entity(ies) as per agreement and to do all other acts and things as may be necessary from time to time.

(viii) To sell, improve, manage, develop, exchange, loan, license, lease or let, under-lease, sub-let, mortgage, dispose of, turn to account, to provide on a conducting basis or through any other method(s) or otherwise deal with any property(ies) including real estate(s) and such other asset(s) of the Company for residential, trade or business purpose(s) and collect rents and incomes therefrom, on account or on behalf of individual(s), firm(s), company(ies) and other person(s) or any part thereof, for such consideration as the Company may deem fit.

(ix) To purchase any land, plot(s) of land or immovable property or any right or interest therein either singly or jointly or in Partnership with any person(s) or Body corporate or partnership Firm and to develop and construct thereon residential, commercial complex or complex(es) either singly or jointly or in partnership as aforesaid, comprising offices for sale or self-use or for earning rental income thereon by letting out individual units comprised in such building(s).

(x) to purchase any movable or immoveable property including industrial, commercial, residential, agricultural or farm lands,

plots, buildings, houses, apartments, flats or areas within or outside the limits of Municipal Corporation or other local bodies, anywhere within the Domain of India, to divide the same into suitable plots, and to rent or sell the plots for building / constructing residential houses, bungalows, business premises, and colonies and rent or sell the same and realize cost in lumpsum or easy instalment or by hire purchase system and otherwise.

(xi) To undertake, render and carry out various services including the business of maintenance, protection and upkeep of buildings, residential complexes, housing societies by providing common maintenance and administrative services such as regular upkeep & maintenance of electrical installations, water supply network, scavenging, general cleaning, painting, plumbing, repairs, additions, alterations, modifications, improvements, air-conditioning and heating Systems, lift operations, security & surveillance arrangements, tele-communication systems, cable services and all or any type of general & special maintenance services

(xii) To carry on the business and profession of providing services of all kinds including administrative, legal, accounting, advisor, marketing and other.

(xiii) To carry on the businesses of providing office services and providing services of technicians, scientists, artists, administrators, salesmen, economists, accountants, experts and personnel of other categories and of acting as recruitment agents, advertising agents and organisers.

1.1 The Registered office of the Demerged Company is situated at MC Shah House, 1/B, FF, Avantika Society, Nr. Naranpura Railway Crossing, Naranpura, Ahmedabad – 380013, Gujarat. The Permanent Account Number (PAN) of the Demerged Company is

AAACR8326F and email address of the Demerged Company is corpdbs@yahoo.com.

2. Sidhant Real Estate Developers and Services Private Limited ("**Resulting Company/ Sidhant**") was incorporated as a private limited company on January 16, 2020 under the provisions of the Companies Act, 2013. That the Main Objects of the Resulting company include:

(i) to purchase, sell, acquire or dispose of any land, plot(s) of land or movable or immoveable property or any right or interest therein either singly or jointly or in partnership with any person(s) or body corporate or partnership firm and to develop and construct thereon residential, commercial, retail space, complex or complexe(s) either singly or jointly or in partnership as aforesaid, comprising offices for sale or self use or for earning rental income thereon by letting out to any person individual units comprised in such building(s).

(ii) To purchase any movable or immovable property including industrial, commercial, residential, or farm lands, plots, buildings, houses, apartments, flats or areas within or outside the limits of Municipal Corporation or other local bodies, anywhere within the Domain of India, to divide the same into suitable plots, and to rent or sell the plots for building/constructing residential houses, bungalows, business premises, and colonies and rent or sell the same and realize cost in lumpsum or easy installments or by hire purchase system and otherwise and carry on the business such as builders, contractors, architects, engineers, Estate agents, decorators and surveyors.

(iii) To carry on the business and profession of providing services of all kinds including administrative, legal, accounting, advisor,

marketing and other and to undertake, render and carry out various upkeep, maintenance and utility services including the business of maintenance, protection and upkeep of buildings, residential units/ complexes, retail spaces, housing societies by providing common maintenance and administrative services such as upkeep & maintenance of electrical installations, water supply network, scavenging, general cleaning, painting, plumbing, repairs, additions, alterations, modifications, improvements, air-conditioning and heating Systems, lift operations, security & surveillance arrangements, tele-communication systems, cable services and all or any type of general & special maintenance services within or outside the country any where in the world for public or otherwise buildings, structures and other construction or conveniences of all kinds and to undertake, execute, carry out, dispose of or otherwise turn to account the same.

(iv) To invest funds of the Company in various avenues such as equity fund, debt fund, various schemes of mutual funds, portfolio management schemes, bank deposits, money market instruments, government securities, granting of loans and issuing guarantees on behalf of group companies and to trade in shares or other securities either in the name of the Company or its nominees or through funds established or to be established by the Company or invest and hold such investments in equity shares, preference shares, bonds, debentures, debt or loans in its group companies or in representation offices registered, incorporated or recognized in or under the laws of any place outside India in accordance with applicable laws, including such laws as may be specified by the Reserve Bank of India, from time to time.

(v) To carry on the businesses of providing office services and providing services of technicians, scientists, artists,

administrators, salesmen, economists, accountants, experts and personnel of other categories and of acting as recruitment agents, advertising agents and organizers.

2.1 The Company is having its registered office situated at MC Shah House, 1/B, FF, Avantika Society, Nr. Naranpura Railway Crossing, Naranpura, Ahmedabad – 380013, Gujarat. The Permanent Account Number (PAN) of the Resulting Company is ABDCS2628F and email address of the Resulting Company is corpdbs@yahoo.com.

2.2 Clause III(B)(12) and Clause III(B)(7) of the Memorandum of Association of the Demerged company and the Resulting Company, respectively, permit and authorize the demerger of Demerged Undertaking of Demerged company with the Resulting Company respectively.

OBJECTIVE / RATIONALE OF THE SCHEME

3. The present Scheme of Arrangement would, inter alia, have the following benefits:

i. As the business of real estate is substantially different from investment, the demerger will enable the Demerged Company and the Resulting Company to chart out their own independent strategies to maximize value creation for their respective stakeholders in relation to their respective focused business activities.

ii. The equity shares of the Demerged Company and the Resulting Company are held by the same shareholders. The Resulting Company is also engaged in real estate business. The proposed

demerger will result in consolidation of real estate business of both the Demerged Company and the Resulting Company into the Resulting Company. The Resulting Company will be able to focus on the entire real estate business with specific expertise and operational control.

iii. The demerger will enable the Demerged Company to focus more specifically on the investments held by it as a holding company.

iv. The proposed arrangement will result in better allocation of business, efficient, expert and focused management, achieve cost savings, pooling of real estate assets and resources in the Resulting Company, rationalization of administrative expenses. The arrangement will enable the Demerged Company and the Resulting Company to achieve considerable synergy of operations from specific nature of the business and administrative point of view.

v. The demerger will permit increased focus by the Demerged Company and the Resulting Company on their respective businesses in order to better meet their respective stakeholders' needs and priorities.

vi. The Scheme would be beneficial to and in the best interest of all the stakeholders of the companies involved in the present Scheme. The Scheme shall not in any manner be prejudicial to the interests of concerned shareholders / creditors or general public at large.

vii. Consequent to the demerger, the reduction of capital will result in reflecting the actual net worth of the Demerged Company.

PART – B

DEFINITIONS, SHARE CAPITAL AND DETAILS OF PROMOTERS

4. DEFINITIONS

In this Scheme, unless repugnant to the context or meaning thereof, the following expressions shall have the following meanings:

(a) "**Act**" or "**the Act**" means the Companies Act, 2013 and rules, regulations, notifications made there under, if any, and includes any statutory modifications, re-enactments or amendments thereof, from time to time and also mean and refer to corresponding relevant enforceable Sections of Companies Act, 1956, the rules and regulations made there under, if any.

(b) "**Applicable Law**" shall mean any applicable statute, enactments, acts of parliament, state or provincial legislatures, laws, ordinances, rules, bye-laws, regulations, notifications, guidelines, policies, directions, directives and orders of any government, statutory authority, tribunal, board, court or recognized stock exchange of India.

(c) "**Appointed Date**" means the date of approval/sanction of the present Scheme by the Hon'ble National Company Law Tribunal (NCLT) or Hon'ble National Company Law Appellate Tribunal (NCLAT), or any other competent Court (s), judicial or quasi-judicial authority having jurisdiction and power to sanction the Scheme or any other date as may be prescribed by the Hon'ble NCLT/NCLAT.

(d) "**Board of Directors**" or "**Board**" means Board of Directors of Rajdhani and Sidhant as may be relevant and includes any

Committee of the Board or any person authorized by the respective Board of Directors or such committee of Directors.

(e) "**Demerged Company**" or "**Rajdhani**" means Rajdhani Investments & Agencies Private Limited, a company incorporated under the Act and having its registered office at MC Shah House, 1/8, FF, Avantika Society, Nr. Naranpura Railway Crossing, Naranpura, Ahmedabad – 380013, Gujarat.

(f) **"Demerged Undertaking"** means the Real Estate Undertaking engaged in the business of real estate and related services by the Demerged Company which is being transferred to the Resulting Company and shall include (without limitation):

i. All assets and property(ies) wherever situated, whether movable or immovable, leasehold or freehold, tangible or intangible, including but not limited to all plant and machinery, buildings, offices, roads and culverts, tube well installations, equipment, capital work-in-progress, vehicles, furniture, fixtures, office materials, computer installations, electrical appliances, accessories, investments including stocks, goods in transit, receivables, goodwill, industrial and other licenses and rights, software products, design, developments, tools, operating systems, trademarks and other industrial property rights, licences, leases and tenancy rights, interest in partnership, development rights, other benefits (including tax benefits), tax holiday benefits, tax incentives & exemptions (including but not limited to tax credits), Minimum Alternate Tax Credit entitlement ("MAT Credit"), tax losses (if available) under Income Tax Act, 1961, or all tax benefits under the Central Goods and Service Tax Act, Integrated Goods and Service Tax Act, respective state Goods and Service Tax Act, if any, or any other taxation laws, easements, privileges, liberties, grants and advantages of whatsoever nature including

pending projects where so ever situated belonging to and / or in the ownership, power or possession and in the control of or vested in or granted in favor of or enjoyed by the Demerged Undertaking, including but without being limited to licenses in respect thereof, concessions in terms of duties, taxes, subsidies, incentives, as may be available to the Demerged Undertaking or in relation to any movable or immovable assets of the Demerged Undertaking and including easements, interest in partnership, advantages, benefits, rights, grants and exemptions granted under any law, or other enactment, leases, tenancy rights, ownership flats, quota rights, permits, approvals, authorizations, all records, files, papers, computer programs, manuals, data, catalogues, sales and advertising materials, lists and other details of present and former customers and suppliers, customers credit information, customer and supplier pricing information and other records in connection with or relating to the Demerged Undertaking and all other interests including those arising to the Demerged Undertaking including but without being limited to land and building, all fixed and movable plant and machinery, construction equipment's, leasehold or freehold, tangible or intangible, including all computers and accessories, software and related data, leasehold improvements, plant and machinery, offices, capital work-in-progress, vehicles, furniture, fixtures, fittings, office equipment, telephone, facsimile and other communication facilities and equipment, electrical, appliances, accessories, deferred tax assets and investments, etc. other interests (including interest in partnership), rights or powers of every kind, nature and description whatsoever pertaining to or relatable to the Demerged undertaking;

ii. All debts, liabilities, duties and obligations present and future relatable to the Demerged Undertaking;

iii. All rights and licenses, all assignments and grants thereof, all permits, approvals, registrations, notifications, quota rights, import quotas, rights (including rights under any agreement, contract applications, memorandum of understanding, letters of intent or any other contracts), or schemes of Central / State governments, quality certifications and approvals (both Indian and foreign), product registrations, regulatory approvals, entitlements, industrial and other licenses, the registrations, if any, and such other schemes, registrations / approvals / licenses from the Central Government, any State Government, any local authority, Customs, Director, Town and Country Planning, Central Excise, Software Technology Parks of India, Directorate General of Foreign Trade, Income Tax, Service Tax, Sales Tax, Value Added Tax, Goods and Service Tax Act (s), Reserve Bank of India, Ministry of Corporate Affairs, Ministry of Commerce & Industry, Ministry of Finance, municipal body permissions, goodwill, approvals, consents, tenancies, if any, in relation to the project and / or residential and /or commercial properties, investments and/or interest (whether vested, contingent or otherwise) in projects undertaken by the Demerged Undertaking, either solely or jointly with other parties, balances, bank balances, deposits, advances, recoverable, receivables, easements, advantages, financial assets, hire purchase and lease arrangements, the benefits of bank guarantees issued by the Demerged Company in relation to the Demerged Undertaking, privileges, all other claims, rights and benefits (including under any powers of attorney issued by Demerged Company in relation to the Demerged Undertaking or any powers of attorney issued in favour of Demerged Company or from or by virtue of any proceeding before a legal, quasi-judicial authority or any other statutory authority to which Demerged Company was party), powers and facilities of every

kind, nature and description whatsoever, right to use and avail of telephones, telexes, facsimile connections and installations, utilities, electricity, water and other services, provisions, funds, benefits of all agreements, , contracts and arrangements and provisions, funds, benefits of all agreements, contracts and arrangements and all other interests, in connection with or relating to the Demerged Undertaking;

iv. All deposits and balances with the Government, Semi-Government, local and other authorities and bodies, customers and other persons, earnest moneys and/or security deposits paid or received by the Demerged Company, directly or indirectly, in connection with or in relation to the business of the Demerged Undertaking;

v. All books, records, files, papers, software programmes, product specifications and process information records, standard operating procedures, computer programmes along with their licenses, manuals and back-up, copies, drawings, other manuals, data catalogues, quotations, sales and advertising materials, lists of present and former customers and suppliers, customer credit information, customer pricing information and other records whether in physical or electronic form, directly or indirectly, in connection with or relating to the business of the Demerged Undertaking;

vi. All trademarks, brands, goodwill, intellectual property rights, trade names, patents and domain names, copyrights, industrial designs, building plans approval, NOC, sanctions and licenses, trade secrets, products, registrations and other intellectual property and all other interests exclusively relating to the goods or services being dealt with by the business of the Demerged Undertaking

but shall not include any assets or liabilities relating to the remaining business of Demerged Company;

vii. It is intended that the definition of Demerged Undertaking under this clause would enable the transfer of all properties, assets and liabilities of the demerged undertaking on a going concern basis from Demerged Company to the Resulting Company pursuant to the Scheme;

viii. All permanent employees, if any, engaged by the Demerged Company, in relation to the Demerged Undertaking, as on the date of the Scheme coming into effect.

(g) **"Governmental Authority"** means the Government of India, State Government(s) and any competent governmental, quasi-governmental, regulatory, statutory or administrative authority, agency, department, commission or instrumentality (whether local, municipal, national or otherwise), court, board or tribunal of competent jurisdiction or other law, rule or regulation making entity.

(h) **"IT Act"** means the Income-tax Act, 1961 and shall include any statutory modifications, re-enactments or amendments thereof for the time being in force.

(i) **"National Company Law Tribunal" or "NCLT" or "The Tribunal"** means the Hon'ble National Company Law Tribunal at Ahmedabad or any other bench of the Hon'ble National Company Law Tribunal constituted under Section 408 of the Companies Act, 2013 having jurisdiction over the Companies, and as and when the context may require.

(j) **"National Company Law Appellate Tribunal" or "NCLAT" or "The Appellate Tribunal"** means the Hon'ble National Company Law Appellate Tribunal at New Delhi, constituted under Section 410 of the Companies Act, 2013, as and when the context may require.

(k) **"Real Estate undertaking"** means the entire business of real estate and other allied services being undertaken by the Demerged Company, more particularly explained in Clause 1(f).

(l) **"Resulting Company"** or "Sidhant" means Sidhant Real Estate Developers and Services Private Limited, a company incorporated under the Act and having its registered office at MC Shah House, 1/8, FF, Avantika Society, Nr. Naranpura Railway Crossing, Naranpura, Ahmedabad – 380013, Gujarat.

(m) **"Record Date"** means the date, if any, to be fixed by the Board of Directors of the Demerged Company and the Resulting Company for the purpose of determining the members of the Demerged Company to whom equity shares will be allotted by the Resulting Company pursuant to this Scheme;

(n) **"Retained Business"** means the remaining activities, investments of the Demerged Company including shares, securities and other investments, all other assets, liabilities, contracts and concerned employees of the Demerged Company not forming the part of the Demerged Undertaking of the Demerged Company.

(o) **"Scheme of Arrangement" or "this Scheme" or "the Scheme"** means the present Scheme of Arrangement in the nature of Demerger as set out herein in its present form or with any modification(s) made with the consent of the respective Board of Directors of the Demerged Company and the Resulting

Company and subject to such modifications as may be deemed fit by the NCLT or any other appropriate authority/court having equal jurisdiction, as the case may be.

(p) **"Share Entitlement Ratio Report"** means the Share Entitlement Ratio Report dated 7th April, 2022 given by Mr. Gautam Maurya, Registered Valuer.

4.2 EXPRESSIONS NOT DEFINED IN THIS SCHEME

The expressions which are used in this Scheme and not defined in this Scheme, shall, unless repugnant or contrary to the context or meaning hereof, have the same meaning ascribed to them under the Act and other applicable laws, rules, regulations, bye-laws, as the case may be, or any statutory modification or re-enactment thereof from time to time.

4.3 DATE OF COMING INTO EFFECT/ EFFECTIVE DATE

The Scheme shall come into effect from the Appointed Date or such other date as may be approved by the Hon'ble NCLT or Hon'ble NCLAT, or any other competent Court (s), judicial or quasi-judicial authority or any other competent authority having power to sanction the Scheme, as the case may be. The phrase 'coming into effect' or 'becoming effective' in the context of the Scheme shall mean the date on which Scheme shall come into legal operation in the manner stated herein above.

4.4 COMPLIANCE WITH THE TAX LAW

Apart from meeting the commercial and business interest of the parties as specified hereinbefore, this Scheme, in so far the scheme relates to the Demerger of Real Estate undertaking of the Demerged

Company, the Scheme has been drawn up to comply with the provisions of Section 2(19AA) of the IT Act. The Scheme shall stand modified to the extent necessary to comply with Section 2(19AA) of the IT Act.

5. SHARE CAPITAL

5.1 Share capital of the Demerged Company

The authorized, issued, subscribed and paid up share capital of the Demerged Company as on March 31, 2022 is as under:-

PARTICULARS	AMOUNT (Rs.in Lakh)
AUTHORIZED CAPITAL	
[103,29,27,500] Equity Shares of Rs. 10/- each	1,03,292.75
[3,50,04,000] Preference Shares of Rs. 100/- each	35,004.00
ISSUED, SUBSCRIBED AND PAID-UP CAPITAL	
[87,833] Equity Shares of Rs. 10/- each fully paid up	8.78

As on the date of this Scheme, there has been no change in the share capital structure of the Demerged Company.

5.2 Share Capital of the Resulting Company

The authorized, issued, subscribed and paid up share capital of the Resulting Company as on March 31, 2022 is as under:

PARTICULARS	AMOUNT (Rs.in Lakh)
AUTHORISED CAPITAL	
[1,00,00,000] Equity Shares of Rs. 10/- each	1,000.00

[2,90,00,000] Preference Shares of Rs.100/- each	29,000.00
ISSUED, SUBSCRIBED AND PAID-UP CAPITAL	
[5,28,351] Equity Shares of Rs. 10/- each fully paid up	52.84
[2,87,50,000] Preference Shares of Rs.100/- each fully paid up	28,750.00

As on the date of this Scheme, there has been no change in the share capital structure of the Resulting Company.

5.3. PROMOTER

The promoters of the Demerged Company and the Resulting Company are Mr. Rajiv Singh, Ms. Kavita Singh and Singh Family Trust, which are not parties to the present scheme. The trustees of the Singh Family Trust are Mr. Rajiv Singh, Dr. Kushal Pal Singh and Ms. Kavita Singh and the beneficiaries of the Trust are Ms. Savitri Devi Singh and Ms. Anushka Singh.

5.4 Both the Demerged Company and the Resulting Company are unlisted companies and the equity shares of both the companies are not listed on any stock exchange.

PART - C

DEMERGER AND TRANSFER/VESTING OF DEMERGED UNDERTAKING OF RAJDHANI (DEMERGED COMPANY) INTO SIDHANT (THE RESULTING COMPANY) AND CONSEQUENT CAPITAL REDUCTION OF THE DEMERGED COMPANY

6. TRANSFER AND VESTING OF DEMERGED UNDERTAKING

6.1 Upon coming into effect of this Scheme and with effect from the Appointed Date:

(i) The Demerged Undertaking shall without any further act, deed, instrument, matter or thing to be demerged and vested in the Resulting Company on a going concern basis at book value (i.e. values as stated in the books of accounts of the Demerged Company with effect from the Appointed Date) pursuant to the provisions of Sections 230-232 of the Act, together with all estate, assets, debts, outstanding, credits, liabilities, rights, claims, title, interest and authorities including accretions and appurtenances so as to become the property of the Resulting Company free from any encumbrances subject to the Clauses herein below .

(ii) Without prejudice to the generality of sub-clause 6.1(i) above, it is expressly provided that in respect of such of the assets and properties of the Demerged Undertaking, including cash and bank balances, as are movable in nature or incorporeal property or are otherwise capable of transfer by physical delivery, by paying over or by endorsement and/or delivery, the same shall be so transferred by the Demerged Company to the Resulting Company, with effect from the Appointed Date, after the Scheme is sanctioned by the Hon'ble NCLT without requiring any deed or instrument of conveyance for the same and shall become the property(ies) of the Resulting Company.

(iii) In respect of movables other than those dealt with in Clause 6.1(ii) above including sundry debts, receivables, bills, credits, loans and advances, if any, whether recoverable in cash or in kind or for value to be received, bank balances, investments, earnest money and deposits with any Government, quasi government, local or other Governmental Authority or body or with any company or other person of the Demerged Company pertaining to the Demerged Undertaking, the same shall on and from the Appointed Date, stand transferred to and vested in the Resulting Company without any notice or other intimation to the debtors (although the Resulting Company may

without being obliged and if it so deems appropriate at its sole discretion, give notice in such form as it may deem fit and proper, to each person, debtor, or depositor, as the case may be, that the said debt, loan, advance, balance or deposit stands transferred and vested in the Resulting Company).

(iv) All the licenses, essentiality certificates, permits, consents, quotas, approvals, permissions, incentives, sales tax deferrals, GST benefits, loans, subsidies, concessions, grants, rights, claims, leases, refund of monies, tenancy rights, liberties, rehabilitation schemes, special status and other benefits or privileges enjoyed by or conferred upon or held or availed of by and all rights and benefits that have accrued or which may accrue to the Demerged Company relating to the Demerged Undertaking, shall, pursuant to the provisions of Sections 230-232 of the Act and rules made thereunder, without any further act, instrument or deed, be and stand transferred to and vested in and/or be deemed to have been transferred to and vested in and be available to the Resulting Company so as to become as and from the Appointed Date the licenses, essentiality certificates, permits, consents, quotas, approvals, permissions, incentives, sales tax deferrals, GST benefits, loans, subsidies, concessions, grants, rights, claims, leases, refund of monies, tenancy rights, liberties, rehabilitation schemes, special status and other benefits or privileges of the Resulting Company and shall remain valid, effective and enforceable on the same terms and conditions to the extent permissible under applicable law.

(v) All assets, estate, rights, titles, interests, licenses and authorities (including for the operation of bank accounts) acquired by or permits, quotas, consents, approvals, permissions, incentives, sales tax deferrals, GST deferrals, loans or benefits, subsidies, concessions, grants, rights, claims, leases, tenancy rights, liberties, rehabilitation

schemes and other assets, special status and other benefits or privileges enjoyed or conferred upon or held or availed of by and/ or all rights and benefits that have accrued or which may accrue to the Demerged Company relating to the Demerged Undertaking on or after the Appointed Date and prior to the Sanction of Scheme by Hon'ble NCLT in connection with or in relation to the operation of the Demerged Company relating to the Demerged Undertaking shall, upon the Sanction of Scheme by Hon'ble NCLT, pursuant to the provisions of Sections 230-232 of the Act, without any further act, instrument or deed, be and stand transferred to and vested or deemed to have been transferred to and vested in the Resulting Company.

(vi) All assets and properties of the Demerged Company pertaining to Demerged Undertaking on the Appointed Date, whether or not included in the books of the Demerged Company and all assets and properties which are acquired by the Demerged Company pertaining to the Demerged Undertaking on or before the Scheme coming into effect, shall be deemed to be and shall become the assets and properties of the Resulting Company, and shall under the provisions of Sections 230 to 232 and all other applicable provisions, if any, of the Act, without any further act, instrument or deed, be and stand transferred to and vested in and be deemed to have been transferred to and vested in the Resulting Company on the Scheme coming into effect pursuant to the provisions of Sections 230 to 232 of the Act.

6.2 Upon coming into effect of this Scheme and with effect from the Appointed Date:

(i) All liabilities relating to and comprised in the Demerged Undertaking of the Demerged Company, including all secured and unsecured

debts (whether in Indian rupees or foreign currency), sundry creditors, liabilities (including contingent liabilities), duties and obligations and undertakings of the Demerged Company pertaining to Demerged Undertaking of every kind, nature and description whatsoever and howsoever arising, raised or incurred or utilized for its business activities and operations, shall, under the provisions of Sections 230 to 232 and other applicable provisions, if any, of the Act, without any further act, instrument, deed, matter or thing, be transferred to and vested in or be deemed to have been transferred to and vested in the Resulting Company, along with, any charge, encumbrance, lien or security thereon, and the same shall be assumed by the Resulting Company to the extent they are outstanding on the date of the Scheme coming into effect so as to become as and from the Appointed Date, the liabilities of the Resulting Company on the same terms and conditions as were applicable to the Demerged Company, and the Resulting Company shall meet, discharge and satisfy the same.

(ii) All debts, liabilities, duties and obligations of any kind, nature or description, secured or unsecured, whether provided for or not, whether disclosed or undisclosed in the books of accounts of Demerged Company, and all debts and loans raised, and duties, liabilities and obligations incurred or which arise or accrue to the Demerged Company pertaining to Demerged Undertaking on or after the Appointed Date, till the Scheme coming into effect, pursuant to the provisions of Sections 230-232 of the Act, without any further act, instrument or deed, be and shall stand transferred to and vested in the Resulting Company, so as to become the debt, liabilities, duties and obligations of the Resulting Company by virtue of this Scheme. Further, it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, liabilities, duties and

obligations have arisen in order to give effect to the provisions of this Clause. Notwithstanding anything contained in this Scheme, if there are any common liabilities or loans raised and where the funds have been used for both the Undertakings, the same shall be allocated between the undertakings in terms of Section 2(19AA) of the IT Act.

(iii) It is clarified that in so far as the assets of Demerged Undertaking of the Demerged Company are concerned, the security or charge over such assets or any part thereof, relating to any loans, debentures or borrowings of the Demerged Undertaking of the Demerged Company, shall, without any further act or deed continue to relate to such assets or any part thereof after the Scheme coming into effect and shall not relate to or be available as security or charge in relation to any or any part of the assets of the Resulting Company, save to the extent warranted by the terms of the existing security arrangements, if any. The loan(s) or any part thereof outstanding in the books of the Demerged Company which relate to the Retained Business of the Demerged Company are not being transferred along with the Demerged Undertaking to the Resulting Company, therefore, the charge relating to the Retained Business of the Demerged Company, if any, on the assets of the Demerged Undertaking, shall not extend to the Resulting Company.

(iv) It is further clarified that, upon coming into effect of the Scheme and in cases other than those referred to in above, proportionate part of the general or multipurpose borrowings and liabilities raised for financing the working capital of the Demerged Company shall, without any further act or deed, be and shall stand transferred to the Resulting Company in the same proportion in which the value of the assets transferred under this Scheme bears to the total value of the current assets of the Demerged Company immediately before the demerger of the Demerged Undertaking. The charge on the assets of

the Demerged Company shall be transferred to the assets of the Resulting Company in proportion to the assets transferred to the Resulting Company.

(v) In case any of the liabilities and obligations pertaining to Demerged Undertaking of the Demerged Company as on the Appointed Date deemed to be transferred to the Resulting Company have been discharged or satisfied by the Demerged Company prior to the Scheme coming into effect, such discharge shall be deemed to have been for and on account of the Resulting Company.

(vi) All loans raised and used, all debts, duties, undertakings, liabilities and obligations incurred or undertaken by the Demerged Company in relation to or in connection with the operation of the Demerged Undertaking in the ordinary course of business after the Appointed Date and prior to the sanction of the Scheme by Hon'ble NCLT shall also be deemed to have been raised, used, incurred or undertaken for and on behalf of the Resulting Company and, to the extent they are outstanding on the date of Scheme coming into effect, shall, upon the Sanction of the Scheme by Hon'ble NCLT, pursuant to the provisions of Sections 230-232 of the Act, without any further act, instrument or deed be and stand transferred to and vested in or be deemed to have been transferred to and vested in the Resulting Company and shall become the debt, duties, undertakings, liabilities and obligations of the Resulting Company which shall meet, discharge and satisfy the same.

(vii) Loans, advances and other obligations (including any guarantees, letters of credit, letters of comfort or any other instrument or arrangement which may give rise to a contingent liability in whatever form), if any, due or which may at any time in future become due between the Demerged Company pertaining to Demerged

Undertaking and the Resulting Company shall, *ipso facto*, stand discharged and come to an end and there shall be no liability in that behalf on any party and appropriate effect shall be given in the books of accounts and records of the Resulting Company. It is hereby clarified that there will be no accrual of interest or other charges in respect of any inter-company loans, advances and other obligations with effect from the Appointed Date.

(viii) Subject to the necessary consents being obtained in accordance with the terms of this Scheme, the provisions of this Clause shall operate notwithstanding anything to the contrary contained in any deed or writing or the terms of sanction or issue or any security document, all of which instruments shall stand modified and/or superseded by the foregoing provisions.

6.3 With effect from the Appointed Date and upto the date of this Scheme coming into effect:

(i) The Demerged Company shall carry on and shall be deemed to have carried on all business and activities relating to the Demerged Undertaking of the Demerged Company for and on behalf of the Resulting Company.

(ii) The Demerged Company shall in ordinary course of business or otherwise carry on its businesses and activities with reasonable diligence and business prudence. All such actions shall include without limitation ability to undertake any actions in relation to its business and fulfil all past, existing and/or future commitments with respect to business including sale/disposal of any or all of its assets and/or further investments of proceeds thereof.

(iii) All dividends, profits or incomes accruing or arising to the Demerged Company and all costs, charges, taxes thereon (including but not

limited to the effect of advance tax, tax deducted at source, etc.), any expenditure incurred by or losses arising to the Demerged Company relating to the Demerged Undertaking shall, regardless of the period to which they relate to, for all purposes be treated and be deemed to be and accrue as the dividends, profits or incomes, taxes thereon (including but not limited to the effect of advance tax, tax deducted at source, etc.), costs, charges, expenditure or losses as the case may be, of the Resulting Company.

(iv) Any of the rights, powers, authorities, privileges related or pertaining to the Demerged Undertaking exercised by the Demerged Company shall be deemed to have been exercised by the Demerged Company for and on behalf of, and in trust for and as an agent of the Resulting Company.

6.4 Upon the coming into effect of this Scheme and subject to the provisions of this Scheme, all contracts including customer contracts, all transfer and handover deeds including but not limited to co-developer agreement executed between the Demerged company and the third party for development arrangements created/amended from time to time pertaining to the Demerged Undertaking executed till date, bonds, tenders, bid documents, expressions of interest, memorandum of understanding, agreements, schemes, arrangements, and other instruments including those relating to tenancies, lease, agreement to lease, development rights, agreements, licenses, trademarks, patents, copy rights or other intellectual property rights, other assurances privileges, powers, facilities of every kind and description and of whatsoever nature in relation to the Demerged Undertaking to which the Demerged Company is a party or the benefit of which the Demerged Company may be eligible, and which are subsisting or have effect immediately before the Scheme coming into effect, shall continue in full force and

effect against or in favor of, as the case may be, the Resulting Company and may be enforced as fully and effectually as if, instead of the Demerged Company, the Resulting Company had been a party or beneficiary thereto or there under.

6.5 Pursuant to the demerger of Demerged Undertaking, in case for the purpose of entering into any contract, tenders, bid documents, expression of interest, memorandum of understanding, agreements or any other such instruments, the Resulting Company is required to demonstrate experience, track record and credentials of the Demerged Undertaking, then the experience, track record and credentials gained by the Demerged Company in relation to Demerged Undertaking in the past prior to demerger would be considered to be equivalent as the experience, track record and credentials of the Resulting Company.

6.6 The transfer of the said assets and liabilities of the Demerged Company to the Resulting Company relating to the Demerged Undertaking and the continuance of all the contracts or legal proceedings by or against the Resulting Company shall not affect any contract or proceedings relating to the said assets or the liabilities already concluded by the Demerged Company on or before the Appointed Date up to the date of the coming into effect of the Scheme and that the Resulting Company accepts and adopts all acts, deeds and things done, executed for and on behalf of the Demerged Company as acts, deeds and things done, executed for and on behalf of the Resulting Company.

6.7 Without prejudice to the other provisions of this Scheme and the fact that the vesting of the Demerged Undertaking occurs by virtue of this Scheme itself, the Resulting Company may, at any time after coming into effect of this Scheme in accordance with the provisions hereof, if so required under any law or otherwise, take such actions and

execute such deeds (including deeds of adherence), confirmation or other writings or tripartite arrangement with any party to any contract or arrangement to which the Demerged Company is a party or any writings as may be necessary in order to give formal effect to the provisions of this Scheme or as are required to remove any difficulties and carry out any formalities or compliance for the implementation of this Scheme. The Demerged Company will, if necessary, also be a party to the above.

6.8 With effect from the Appointed Date, all taxes, duties, cess payable by the Demerged Company relating to the Demerged Undertaking and all or any benefits / refunds/ credits/ claims relating thereto under Income Tax, Excise (including MODVAT / CENVAT), Sales Tax (including deferment of Sales Tax), MAT Credits, prepaid taxes i.e. TDS, self-assessment tax, tax losses (if available under law), advance tax payments, Value Added Tax and Service Tax, GST, etc. shall be treated as the liability or benefit / refund / credit / claims of the Resulting Company. The Resulting Company shall be entitled to file / revise its tax returns, TDS Certificates, TDS returns and other statutory returns, if required, and shall have the right to claim benefit / refund / credits and/ or set off all amounts paid by the Demerged Company in relation to the Demerged Undertaking under the relevant income tax, sales tax, service tax, GST or any other tax laws. The right to make such revisions in the tax returns and to claim refunds / credits is expressly reserved in favor of the Demerged Company and the Resulting Company.

6.9 Upon the coming into effect of this Scheme, all legal proceedings of whatever nature by or against the Demerged Company relating to Demerged Undertaking, if pending, on the Scheme coming into effect, shall not abate, be discontinued or be in any way prejudicially affected by reason of the vesting of the Demerged Undertaking of the Demerged Company in the Resulting Company or of anything

contained in this Scheme but the proceedings may be continued, prosecuted and enforced by or against the Resulting Company in the same manner and to the same extent as it would or might have been continued, prosecuted and enforced by or against the Demerged Company as if this Scheme had not been made.

6.10 Upon the coming into effect of this Scheme:

(i) All staff and employees of the Demerged Company, if any, engaged in or in relation to the Demerged Undertaking, and who are in such employment as on the date immediately preceding the sanction of Scheme by Hon'ble NCLT shall become the staff and employees of the Resulting Company, and subject to the provisions of this Scheme, on terms and conditions not less favorable than those on which they are engaged as on the sanction of Scheme by Hon'ble NCLT by the Demerged Company and without any interruption of or discontinuance or break in services as a result of the transfer of the Demerged Undertaking.

(ii) The Resulting Company further agrees that for the purpose of payment of any retirement benefit / compensation, such immediate uninterrupted past services with the Demerged Company shall also be taken into account.

(iii) The accounts / funds of the employees, if any, whose services are transferred under sub-clause 6.10(i) above, relating to superannuation, provident fund and gratuity fund shall be identified, determined, and transferred to the respective Trusts / Funds of Resulting Company and such employees shall be deemed to have become members of such Trusts / Funds of the Resulting Company.

(iv) Until such time that the Resulting Company creates its own funds and the employees of Demerged Company whose services are

transferred under sub-clause 6.10(i) above shall continue to make contributions pertaining to the employees of the Demerged Undertaking to the relevant funds / trusts of the Demerged Company. Such contributions pertaining to the employees of the Demerged Undertaking shall be transferred to the funds/trusts created by Resulting Company on creation of relevant funds/trusts by the Resulting Company.

6.11 Transfer and vesting of the assets, liabilities and obligations of the Demerged Undertaking as per this Scheme and continuances of the proceedings by or against the Resulting Company shall not in any manner affect any transaction or proceedings including but not limited to any rights created of third party under the co-developer agreement or Transfer and Handover Deeds executed with the third party in respect of the Demerged Undertaking on or before the Appointed Date to the end and intent that the Resulting Company accepts all such acts, deeds and things done and executed by and/or on behalf of the Demerged Company as acts, deeds and things done and executed by and on behalf of the Resulting Company.

6.12 Upon the Sanction of Scheme by Hon'ble NCLT, the Resulting Company shall commence and carry on and shall be authorized to carry on the business of Demerged Undertaking.

6.13 To give effect to the demerger order passed under Sections 230-232 of the Act in respect of this Scheme by the Hon'ble NCLT, the Resulting Company shall, at any time pursuant to the order on this Scheme, take actions to give effect to the Scheme in accordance with the provisions of Sections 230-232 of the Act. The Resulting Company shall be authorized to execute any pleadings, applications, forms etc. as are required to remove any difficulties and

carry out any formalities or compliance as are necessary for the implementation of this Scheme.

6.14 The Resulting Company unconditionally and irrevocably agrees and undertakes to pay, discharge, and satisfy all the liabilities and obligations of the Demerged Company relating to the Demerged Undertaking in accordance with law with effect from the Appointed Date, to give effect to the foregoing provisions.

6.15 The Resulting Company shall, with effect from the Appointed Date and upon the Scheme coming into effect, record the assets and liabilities of the Demerged Undertaking of the Demerged Company vested in it pursuant to this Scheme, at the respective book values thereof and in the same form as appearing in the books of the Demerged Company at the close of business of the day immediately preceding the Appointed Date.

6.16 Capital Reduction: Upon the Scheme coming into effect and as an integral part of the Scheme:

a) Consequent to the transfer of Demerged undertaking to the Resulting Company, the loss/deficit arising to the Demerged Company shall be adjusted against Securities Premium Account in books of Demerged Company.

b) The reduction in the above-mentioned Securities Premium account of Demerged Company shall be effected in accordance with the provision of Sections 230 to 232 of the Act read with Sections 52, 66 and/or any other applicable provisions of the Act without any further act or deed on the part of the Demerged Company.

c) The consent of the shareholders of the Demerged Company to this Scheme shall be deemed to be the consent of its shareholders for the purpose of effecting the above mentioned capital reduction of Demerged Company under the provisions of the Section 66 of the Act.

d) The order of NCLT sanctioning the Scheme shall also be deemed to be the order passed by NCLT under Section 66 of the Act, for the purpose of confirming such capital reduction. Notwithstanding the reduction in the issued and paid-up equity share capital of Demerged Company, it shall not be required to add "AND REDUCED" as suffix to its name.

e) Consequent to capital reduction, there would be no impact on the shareholding pattern, no payment is proposed to be made to the shareholders and therefore it would not in any way adversely affect the ability of the Demerged Company to meet its obligations/ commitments/operations in the normal course of business. The capital reduction does not result in extinguishment of any liability or diminution of any liability and the interest of the creditors is also not prejudicially affected in any way and they will be paid off in the ordinary course of business.

f) The proposed reduction of capital does not envisage transfer, conveyance or vesting of any of the properties and/ or liabilities of the Demerged company to any person or entity.

SECTION-D

7. SHARE CAPITAL, DIVIDENDS, RIGHTS AND ENTITLEMENT OF MEMBERS OF DEMERGED COMPANY AND RESULTING COMPANY AND OTHER MATTERS

7.1 The existing issued, subscribed, and paid-up share capital, as set out in Clause 5.1 of the Demerged Company shall continue to remain with the Demerged Company held by the same shareholders who are holding shares in the Demerged Company as on the date of this Scheme.

a. Upon the Scheme coming into effect and in consideration of the transfer of Demerged undertaking as provided herein in favor of the Resulting Company and in consideration of the mutual covenants agreed to in this Scheme and in accordance with the Share Entitlement Ratio Report, the Resulting Company shall without any further act or deed, issue and allot 4,482 equity shares of Rs. 10/- each fully paid up for every equity share held in the Demerged Company to the equity shareholders of the Demerged Company, whose names appear in the register of members maintained with the Depository of Demerged Company, on a date (hereinafter referred to as "Record Date") to be fixed in that behalf by the Board of Directors of Demerged Company in consultation with the Resulting Company for the purpose of reckoning the names of the equity shareholders of Demerged Company, in terms of the Share Entitlement Ratio Report dated 7th April, 2022 given by Mr. Gautam Maurya, Registered Valuer.

7.2 The new equity shares issued, pursuant to above clause, shall be issued and allotted in a dematerialized form to the equity shareholders which hold equity shares in the Demerged Company in dematerialized form, into the account with the depository participant in which the equity shares of Demerged Company are held or such other account with the depository participant as is intimated by the equity shareholders of the Demerged Company into the Resulting Company before the Record Date.

7.3 The new equity shares in the Resulting Company to be allotted to the shareholders of the Demerged Company as mentioned above shall be subject to the provisions of the Memorandum of Association and Articles of Association of the Resulting Company and shall rank pari - passu in all respects with the existing equity shares in the Resulting Company including dividends.

7.4 The said allotment of equity shares to the shareholders of the Demerged Company shall be made in terms of the Scheme and as set out in the Share Entitlement Ratio Report dated 7th April, 2022 issued by Mr. Gautam Maurya, Registered Valuer.

7.5 For the purpose of allotment of shares to the shareholders of the Demerged Company, the fraction less than 0.5 shall be ignored and the fraction of equal to or more than 0.5 shall be considered as one share. Upon the Scheme becoming effective and post allotment of equity shares by the Resulting Company, as there is no inter-se investments between the Demerged Company and Resulting Company, there will be no reduction of capital for the purpose of this clause, as specified under Section 66 of the Act read with Rules made thereunder.

7.6 Where the new equity shares of the Resulting Company are to be allotted, pursuant to this Scheme, to heirs, executors or administrators or, as the case may be, to successors of deceased equity shareholders of Demerged Company, the concerned heirs, executors, administrators or successors shall be obliged to produce evidence of title satisfactory to the Board of Directors of the Resulting Company.

SECTION-E

ACCOUNTING TREATMENT OF THE SCHEME

8. Upon the Scheme coming into effect and pursuant to the provisions of the Act and receipt of relevant approvals:

8.1 (i) Notwithstanding anything else contained in the Scheme, the Demerged Company shall account for the demerger of Demerged Undertaking in accordance with Indian Accounting Standards (Ind AS) notified under Section 133 of the Companies Act, 2013, as notified under the Companies (Indian Accounting Standard) Rules, 2015 and generally accepted accounting principles, as may be amended from time to time, in its books of accounts, such that:

(ii) All the assets and the liabilities of the Demerged Undertaking as appearing in the books of accounts of the Demerged Company shall stand transferred to and vested in the Resulting Company pursuant to the Scheme and shall be reduced from the respective book value of assets and liabilities of the Demerged Company.

(iii) The difference, if any, between the book value of the assets of the Demerged Undertaking of the Demerged Company transferred to the Resulting Company as reduced by the book value of the liabilities of the Demerged Undertaking of the Demerged Company transferred to the Resulting Company, shall be recognised in equity, and will be adjusted through the amount lying to the credit of the Securities Premium Account. The Demerged Company will comply with all the applicable requirements of the Companies Act, 2013 and the Rules made thereunder, for the time being in force related to the reduction of capital.

(iv) For accounting purpose, the Scheme will be given effect from the date when all substantial conditions for the transfer of Demerged Undertaking are completed.

8.2 In the books of the Resulting Company, upon coming into effect of this Scheme, the Resulting Company shall give effect to the following accounting treatment:

(i) The Resulting Company shall give effect of the arrangement in its books of accounts in accordance with accounting prescribed under "pooling of interest" method in accordance with the principles laid down in Appendix C of Indian Accounting Standard (Ind AS) 103–Business Combinations as notified under Section 133 of the Companies Act, 2013, read together with the Companies (Indian Accounting Standard) Rules, 2015.

(ii) The Resulting Company shall, record the assets and liabilities vested in it pursuant to this Scheme, at the respective book values thereof as appearing in the books of the Demerged Company.

(iii) Equity shares issued by the Resulting Company to the shareholders of Demerged Company shall be recorded at its face value.

(iv) The excess or deficit, if any, between the value of assets and liabilities transferred from the demerged company and the nominal value of equity shares to be issued to shareholders of the Demerged Company, shall be credited / debited to Capital Reserves, as the case may be and presented

separately from other capital reserves of the Resulting Company.

8.3 In case of any differences in accounting policy between the Demerged Company and the Resulting Company, the impact of such differences shall be quantified and adjusted with the reserves of Resulting Company to ensure that the true financial statements of the Resulting Company on the Appointed Date are on the basis of consistent accounting policy in accordance with the Indian Accounting Standards as prescribed under the applicable provisions of the Act and applicable generally accepted accounting principles.

8.4 The financial information in the financial statements of Resulting Company in respect of prior periods should be restated as if the business combination had occurred from the beginning of the preceding period in the financial statements, irrespective of the actual date of the combination.

8.5 Inter-company balances between Demerged Undertaking of the Demerged Company and the Resulting Company, if any, shall stand cancelled.

8.6 Both Demerged and Resulting company will comply with all other requirements, in respect of disclosure and presentation, in accordance with the Indian Accounting Standards as prescribed under the applicable provisions of the Act and applicable generally accepted accounting principles.

SECTION-F

GENERAL TERMS AND CONDITIONS

9. Upon the Scheme coming into effect and on the Demerger, transfer and vesting of the Demerged Undertaking into the Resulting Company, the existing charges, if any, on the assets of the Demerged Undertaking shall continue in favour of the bankers and financial institutions, as may be modified, readjusted, apportioned and re-allocated by them between the Demerged Company and the Resulting Company. The Demerged Company shall provide all assistance in getting the charges of the Demerged Undertaking vacated. The bankers / financial institutions shall have a charge only on the assets of the respective undertaking financed by them and release the charge, if any, on the assets of the undertaking not financed by them. Provided further that the Scheme shall not operate to enlarge the security for any loan, deposit or facility created or available to the Demerged Company which shall vest in the Resulting Company by virtue of demerger and the Resulting Company shall not be obliged to create any further or additional security therefor after Demerger has become effective or otherwise.

10. Upon sanction of Scheme by the Hon'ble NCLT, the certified copy of the order of the Hon'ble NCLT shall be filed with the concerned Registrar of Companies within 30 days of receipt of the Certified copy of the order.

11. Even after the Scheme coming into effect, the Resulting Company shall be entitled to realise all money and complete and enforce all pending contracts and transactions in respect of the Demerged Undertaking in the name of the Demerged Company and so far as may be necessary.

12. That the Scheme, in no way, is a Scheme of compromise or arrangement with the creditors as all the creditors of Demerged Company pertaining to the Demerged undertaking and the Resulting Company shall be paid in full as and when their respective amounts fall due in the usual course and therefore, the Scheme of Arrangement will not be affecting the rights of the creditors in any manner. The present Scheme is not a Scheme of Corporate Debt Restructuring as envisaged under Section 230(2) (c) of the Act.

a. Any inter-se contracts pertaining to Demerged Undertaking between the Demerged Company and the Resulting Company shall stand adjusted and vest in the Resulting Company upon the Scheme coming into effect.

b. Upon coming into effect of the Scheme, all motor vehicles of any nature whatsoever comprised in or relatable to the undertakings of the Demerged Company shall vest in the Resulting Company and the appropriate government and registration authorities shall mutate and register the said vehicles in the name of the Resulting Company as if the said vehicles had originally been registered in the name of the Resulting Company without levying or imposing fee, charges, taxes or levy whatsoever.

c. Since, each of the permissions, approvals, consents, sanctions, remissions, special reservations, incentives, concessions and other authorisations in respect of the Demerged Undertaking in the name of the Demerged Company shall stand transferred by the order of the Hon'ble NCLT to the Resulting Company. The Resulting Company shall file the relevant intimations, for the record of the statutory authorities who shall take them on file, pursuant to the vesting orders of the Hon'ble NCLT.

d. Without prejudice to generality of the aforesaid, any concessional / statutory forms under the respective Central / State sales / work contract tax / lease tax/GST Tax/ laws issued / received by the Demerged Company in respect of the Demerged Undertaking, for the period commencing from Appointed Date shall be deemed to be issued / received in the name of the Resulting Company and benefit of such forms, shall be allowable to the Resulting Company in the same manner and to the same extent as would have been available in respect of the Demerged Undertaking in the name of the Demerged Company.

e. Save and except as expressly provided in this Scheme, nothing contained in this Scheme for demerger of Demerged undertaking of the Demerged Company into the Resulting Company shall affect the rest of the assets, liabilities and business of the Demerged Company (retained undertaking) which shall continue to belong to and be vested in and be managed by the Demerged Company.

13. ALTERATIONS/AMENDMENTS TO THE MEMORANDUM OF ASSOCIATION OF THE RESULTING COMPANY

Upon coming into effect of this Scheme the Resulting Company shall without any further act, instrument or deed make suitable alterations/ amendments to their respective Memorandum & Articles of Association, if so required and necessary, for proper implementation of the Scheme in compliance to the applicable provisions of the Act. The Resulting Company shall enhance the authorised share capital to enable allotment of new equity shares, as required, during the process of demerger so as to enable allotment of new shares, post sanction of the Scheme, to the shareholders of the Demerged Company in accordance with the provisions of the Act.

14. CLARIFICATION OF INCOME TAX

14.1 Any tax liabilities under the IT Act, Customs Act, 1962, Central Excise Act, 1944, State Sales Tax laws, Central Sales Tax Act, 1956, Value Added Tax, Service Tax, Goods and Service Tax Act(s), Rules or other applicable laws/ regulations/rules dealing with taxes/ duties/ levies (hereinafter in this Clause referred to as "**Tax Laws**") allocable or related to the business of the Demerged Undertaking of the Demerged Company to the extent not provided for or covered by tax provision in the accounts made as on the date immediately preceding the Appointed Date shall be that of the Demerged Company and the Resulting Company, as the case may be. Any surplus in the provision for taxation/ duties/ levies account including advance tax and withholding tax as on the date immediately preceding the Appointed Date will also be transferred to the account of the Demerged Company and the Resulting Company, as the case may be. Any refund under the Tax Laws due to the Demerged Company (pertaining to the Demerged Undertaking only) consequent to the assessments made on the Demerged Company and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by the Demerged Company and the Resulting Company, as the case may be.

14.2 All taxes (including income tax, sales tax, excise duty, customs duty, service tax, VAT, GST etc) paid or payable by the Demerged Company (pertaining to demerged undertaking only) in respect of the operations and/or the profits of the business before the Appointed Date, shall be on account of the Demerged Company (pertaining to demerged undertaking only) and, insofar as it relates to the tax payment (including, without limitation, sales tax, excise duty, custom duty, income tax, service tax, VAT, GST etc.), whether

by way of deduction at source, advance tax or otherwise howsoever, by the Demerged Company (pertaining to demerged undertaking only) in respect of the profits or activities or operation of the business after the Appointed Date, the same shall be deemed to be the corresponding item paid by Demerged Company and the Resulting Company, as the case may be, and, shall, in all proceedings, be dealt with accordingly.

14.3 The Demerger of the Real Estate Undertaking of the Demerged Company shall take place in accordance with the provisions of Section 2 (19AA) of the IT Act. The Scheme has been drawn up to comply with the provisions of Section 2(19AA) of the IT Act. If any terms or provisions of the scheme are found or interpreted to be inconsistent with the provisions of the said section at a later date including resulting from an amendment of law or for any other reason whatsoever, the provisions of the said section of the IT Act shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with section 2(19AA) of the IT Act. Such modification will however not affect the other parts of the Scheme. The power to make any such amendments as may become necessary shall vest with the respective Board of Directors of the Demerged Company and the Resulting Company which power can be exercised at any time and shall be exercised in the best interests of the Companies and their shareholders.

a) All the properties of the Demerged Undertaking being transferred by the Demerged Company immediately before the Demerger become the properties of the Resulting Company by virtue of the Demerger;

b) All the liabilities relatable to the Demerged Undertaking being transferred by the Demerged Company immediately before

the Demerger become the liabilities of the Resulting Company by virtue of the Demerger;

c) The properties and the liabilities, if any, relatable to the Demerged Undertaking being transferred by the Demerged Company are transferred to the Resulting Company at the values appearing in the books of account of Demerged Company immediately before the Demerger;

d) The transfer of the Demerged Undertaking will be on a going concern basis;

14.4 The Demerged Company shall continue to exist and carry its business on a going concern basis with residual Retained Business undertaking under the same name i.e. Rajdhani Investments & Agencies Private Limited unless the Board of Directors decide otherwise at its sole discretion in accordance with the applicable provisions of the Act.

15. LEGAL PROCEEDINGS

15.1 All legal proceedings of whatsoever nature by or against the Demerged Company (pertaining to demerged undertaking only) pending and/ or arising at the Appointed Date and relating to the Demerged Company (pertaining to demerged undertaking only) or its properties, assets, debts, rights, liabilities, duties and obligations referred above, shall be continued and/ or enforced until the approval/sanction of the Scheme by Hon'ble NCLT as desired by the Demerged Company and the Resulting Company, as the case may be, and as and from the approval/sanction of the Scheme by Hon'ble NCLT shall be continued and enforced by or against the Demerged Company and the Resulting Company, as the case may be, in the same manner and to the same extent as would or might

have been continued and enforced by or against the Demerged Company (pertaining to demerged undertaking only).

15.2 After the Appointed Date, if any, proceedings are taken against the Demerged Company (pertaining to demerged undertaking only), the same shall be defended by and at the cost of the Demerged Company and the Resulting Company, as the case may be.

16. CONTRACTS AND DEEDS

16.1 The Demerged Company and the Resulting Company, as the case may be, may enter into and/ or issue and/ or execute deeds, writings or confirmations or enter into any tripartite arrangements, confirmations or novation, to which the Demerged Company (pertaining to demerged undertaking only) will, if necessary, also be party in order to give formal effect to the provisions of this Scheme, if so required or if so considered necessary. The Demerged Company and the Resulting Company, as the case may be, shall be deemed to be authorized to execute any such deeds, writings or confirmations on behalf of the Demerged Company (pertaining to demerged undertaking only) and to implement or carry out all formalities required on the part of the Demerged Company (pertaining to demerged undertaking only) to give effect to the provisions of this Scheme.

16.2 All subsisting agreements/ arrangements / licenses / permissions / consents / registrations of the Demerged Company (pertaining to demerged undertaking only) relating to the use of patents, patent applications, trade marks (including logos), brands, copyrights, domain names, payment gateways, websites, and / or technology and all other intellectual property and rights, shall accrue to and for the benefit of the Demerged Company and Resulting Company, as the case may be.

16.3 The Scheme shall not in any manner affect the rights of the Creditors, if any, of the respective Demerged Company or Resulting Company, in particular the secured, if any, and unsecured creditors shall continue to enjoy and hold charge, if any, upon their respective securities.

17. SAVING OF CONCLUDED TRANSACTIONS

The transfer of the undertakings of the Demerged Company (pertaining to demerged undertaking only) to the Resulting Company and the continuance of all contracts or proceedings by or against the Demerged Company (pertaining to demerged undertaking only) shall not affect any contracts or proceedings already concluded by Demerged Company (pertaining to demerged undertaking only) on or before the Appointed Date or concluded after the Appointed Date till the Scheme coming into effect, to the end and intent that the Resulting Company accepts and adopts all acts, deeds, matters and things done and/or executed by the Demerged Company (pertaining to demerged undertaking only) in regard thereto as having been done or executed by the Resulting Company.

18. STAFF, WORKMEN AND EMPLOYEES

Upon the Scheme coming into effect, all staff welfare schemes including the existing Provident Fund, Gratuity Fund and/ or schemes and trusts, including employee's welfare trust, created by the Demerged Company (pertaining to demerged undertaking only) for its employees shall be transferred to the Resulting Company. The Demerged Company (pertaining to demerged undertaking only) shall take all steps necessary for the transfer, where applicable, of the Provident Fund, Gratuity Fund and/ or schemes and trusts, including

employee's welfare trust, pursuant to the Scheme, to the Resulting Company. All obligations of the Demerged Company (pertaining to demerged undertaking only) with regard to the said Fund or Funds as defined in the respective trust deed and rules shall be taken over by the Resulting Company from the Appointed Date to the end and intent that all rights, duties, powers and obligations of the Demerged Company (pertaining to demerged undertaking only) in relation to such Fund or Funds shall become those of the Resulting Company, as the case may be, and all the rights, duties and benefits of the employees employed in the Demerged Company (pertaining to demerged undertaking only) under such Funds and Trusts shall be fully protected, subject to the provisions of law for the time being in force. It is clarified that the services of the staff, workmen and employees of the Demerged Company (pertaining to demerged undertaking only) will be treated as having been continuous for the purpose of the said Fund or Funds.

19. APPLICATIONS TO THE CONCERNED AUTHORITIES

The Demerged Company and the Resulting Company shall, with all reasonable dispatch, make applications, petitions, appeals, etc. to the NCLT or such other competent authority having jurisdiction to sanction the present Scheme, as are necessary for the purpose of sanctioning and effective implementation of this Scheme under Sections 230-232 of the Act and any question or issues or disputes arising out of this Scheme shall be subject to the jurisdiction of the NCLT.

20. MODIFICATIONS / AMENDMENTS TO THE SCHEME

The Demerged Company and the Resulting Company, by their respective Board of Directors may make and/or consent to any modifications / amendments to the Scheme or agree to any terms or

conditions suggested by the shareholders and creditors, if any, or to any conditions or limitations that the NCLT or any other authority may deem fit to direct or impose or which may otherwise be considered necessary, desirable or appropriate by them (i.e. the Board of Directors). The Demerged Company and the Resulting Company by their respective Board of Directors shall be authorized to take all such steps as may be necessary, desirable or proper to resolve any doubts, difficulties or questions whether by reason of any directive or order of any other authority or otherwise however arising out of or under or by virtue of the Scheme and/or any matter concerned or connected therewith.

21. CONDITIONALITY OF SCHEME

21.1 The Scheme is subject to the fulfilment of the following substantial conditions:

(a) The Scheme being approved by the requisite majorities in number and value of such classes of persons including the respective members and/or creditors (where applicable) of the Demerged Company and the Resulting Company as may be directed by the Hon'ble Tribunal.

(b) The sanction of the Hon'ble Tribunal under Sections 230-232 of the Act in favour of the Demerged Company and the Resulting Company under the said provisions and to the necessary order under the aforesaid Section being obtained.

(c) Such other approvals as may be required, including, under applicable laws from concerned authorities.

Any references in this Scheme to the terms "upon the Scheme coming into effect" or "on the Scheme becoming effective", shall

mean the satisfaction of the conditions set out in this Clause hereinabove.

21.2 it is further provided that in a case if the Board of Directors of any of the companies as being part of the Scheme, at any stage prior to the Scheme coming into effect, decide not to proceed further with the Scheme and withdraw the consent of the respective company to the Scheme, in such case, the Scheme in its entirety shall not be proceeded with by any party and this Scheme shall stand revoked, cancelled and be of no effect.

22. COSTS, CHARGES AND EXPENSES

All costs, charges, taxes including duties (including the stamp duty and/ or transfer charges, if any, applicable in relation to this Scheme), levies and all other expenses, if any (save as expressly otherwise agreed) of the Demerged Company arising out of or incurred in carrying out and implementing this Scheme and matters incidental thereto shall be borne and paid by the Demerged Company. The Stamp Duty and registration charges, if any, pertaining to the Demerged Undertaking will be borne and paid by the Resulting Company (pertaining to Demerged Undertaking only) and all other costs, charges, expenses will be borne and paid by the Demerged Company.

23. That the Demerged Company and the Resulting Company shall also take all such other steps as may be necessary or expedient to give full and formal effect to and implement to the provisions of this Scheme. Any error, mistake, omission, commission which is apparent and/or absurd in the Scheme should be read in a manner which is appropriate to the intent and purpose of the Scheme and in line with the preamble as mentioned in hereinabove.

24. Even after the Scheme become effective, the Demerged Company and the Resulting Company may approach the Hon'ble NCLT for any incidental order(s) to remove any deficiency or overcome any difficulty in implementation of the Scheme or clear any ambiguity or to comply with any statutory requirements which necessitates the order of the Hon'ble NCLT.

25. Upon the Scheme coming into effect, the Resolutions, if any, of the Demerged Company (pertaining to Demerged Undertaking only), which are valid and subsisting on the Scheme coming into effect, shall continue to be valid and subsisting, without any further act, instrument or deed and be considered as resolutions of the Resulting Company, as the case may be, and if such resolutions have upper monetary or other limits being imposed under the provisions of the Act, or any other applicable provisions, then the said limits shall be added and shall constitute the aggregate of the said limits in the Resulting Company, as the case may be.

26. EFFECT OF NON-APPROVALS

It is provided that in a case if the Board of Directors of any of the Companies as being part of the Scheme, at any stage prior to the Scheme coming into effect, decide not to proceed further with the Scheme and withdraw the consent of the respective company to the Scheme, in such case, the future course of action in relation to the continuity of the Scheme before the Hon'ble NCLT will be mutually decided upon by the respective Board of Directors accordingly.

27. SEVERABILITY:

If any part of this Scheme is held invalid, ruled illegal by any competent authority having jurisdiction, or becomes unenforceable for any reason whatsoever, whether under present or future laws,

then it is the intention of the parties that such part shall be severable from the remainder of this Scheme and this Scheme shall not be affected thereby, unless the deletion of such part shall cause this Scheme to become materially adverse to any party, in which case the parties shall attempt to bring about a modification in this Scheme, as will best preserve for the parties the benefits and obligations of this Scheme, including but not limited to such part.

28. MISCELLANEOUS:

28.1 If any of the conditions that may be imposed by the NCLT and / or competent authority, which the Companies involved in the Scheme may find unacceptable for any reason whatsoever, then they are at liberty to withdraw the Scheme.

28.2 If any part of this Scheme is found to be unworkable for any reason whatsoever, the same shall not, subject to the joint decision of the Companies, affect the validity of or implementation of the other part and/or the provisions of this Scheme.

28.3 No investigation or proceedings under the Act or under the erstwhile Companies Act, 1956 are pending against the Demerged Company or the Resulting Company.

29. The Scheme shall not be deemed to exempt the Companies involved in the present Scheme from any taxes, liabilities, charges to be imposed/levied in accordance with law and the same shall be paid/discharged by the Resulting Company in accordance with law. The sanctioning the Scheme ipso facto would not grant any immunity qua any liabilities that may be imposed on it under the relevant provisions of Income Tax Act or any other statute, in accordance with law. The Demerged Company and Resulting Company shall comply

with all the applicable provisions of the Income tax Act, 1961, all other applicable laws and to discharge all liabilities, as and when same falls due and payable in accordance with law.

30. That the Schedule of Properties of the Demerged Company (pertaining to Demerged Undertaking Only) as on the date of the Scheme, forms part of the present Scheme and has been annexed as "**Schedule 1**" to the present Scheme.

RAJDHANI INVESTMENTS & AGENCIES PRIVATE LIMITED

Corporate Office: Ground Floor,DLF Gateway Tower,DLF Cyber City,Phase-III, Gurgaon-122002
CIN: U65993GJ1972PTC097502 Tel: (+91-124) 4396006 E-mail: corpdbs@yahoo.com

SHORT PARTICULARS OF ALL THE PROPERTY(IES), RIGHTS & POWERS OF THE DEMERGED COMPANY I.e. RAJDHANI INVESTMENTS & AGENCIES PRIVATE LIMITED TO BE TRANSFERRED TO AND VESTED IN THE RESULTING COMPANY, I.e. SIDHNAT REAL ESTATE DEVELOPERS AND SERVICES PRIVATE LIMITED.

IN PART I, PART-II AND PART- III OF THE SCHEDULE (FORM NO. 42)

PART-I

(A SHORT DESCRIPTION OF THE FREEHOLD PROPERTY OF THE DEMERGED COMPANY)

Sl. No.	Revenue/ License details	Total Area
1	Property No. 2A-2201, 2B-2201, 2A-2301, 2B-2301, 2A-2401 and 2B-2401 at Two Horizon Centre, DLF 5, Gurgaon, Haryana	139,863 Sq.ft.
2	211 Nos. Parkings at Two Horizon Centre, DLF 5, Gurgaon, Haryana	1,02,057 Sq.ft.
3	Agriculture Land situated at Village Gangrol,Tehsil Sikandrabad, Distt. Bulandshahr,Uttar Pradesh.	8.786 Hectare

Sl. No.	Revenue/ License details	Total Area
1	Agreement with DLF Limited for entitlement of thirty independent floors alongwith related parking spaces in DLF Phase V, Gurgaon.	75,099 Sq.ft. (approx.)
2	Agreement with Realest Builders & Services Private Limited for purchase of 2B-2101 at Two Horizon Centre, DLF 5, Gurgaon, Haryana	21,677 Sq.ft.

PART-II

(A SHORT DESCRIPTION OF THE LEASEHOLD PROPERTY OF THE DEMERGED COMPANY)

Sl. No.	Plot No.	Sq. Yards.	Area in Acres
	----------NIL----------	-	-

PART-III

(A SHORT DESCRIPTION OF ALL STOCKS, SHARES, DEBENTURES AND OTHER CHARGES IN ACTION OF THE DEMERGED COMPANY)

Stocks:

Sl. No.	Revenue Details	Land Area (in Acre)
1	50% Partnership Share in Lion Brand Poultries, Partnership Firm (holding 8.84 acres of Land in Gurgaon, Haryana)	

Investments:

Sl. No.	Name of Company	No. of Shares	Class of Shares and Face Value
1	----------NIL----------		

Details of Bank Account:

Particulars of Bank Accounts			
Sl. No.	Name of Bank	Branch Address	Account Type & Number
1	ICICI Bank Limited	9A, Phelps, Connaught Place, New Delhi	Current Account-000705012296
2	Kotak Mahindra Bank	G-F 3A-3J Ground Floor, Amba Deep, 14, Kasturba Gandhi Marg, New Delhi	Current Account-2511729128

Particulars of Demat Accounts	
Sl. No.	Details of Depository participant
1	----------NIL----------

For Rajdhani Investments & Agencies Private Limited

Rajiv Singh
Director
DIN: 00003214

RAJDHANI INVESTMENTS & AGENCIES PRIVATE LIMITED

Corporate Office: Ground Floor,DLF Gateway Tower,DLF Cyber City,Phase-III, Gurgaon-122002
CIN: U65993GJ1972PTC097502 Tel: (+91-124) 4396006 E-mail: corpdbe@yahoo.com

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PART-II

(A SHORT DESCRIPTION OF THE LEASEHOLD PROPERTY OF THE DEMERGED COMPANY)

Sl. No.	Plot No.	Sq. Yards.	Area in Acres
	----------NIL----------	-	-

PART-III

(A SHORT DESCRIPTION OF ALL STOCKS, SHARES, DEBENTURES AND OTHER CHARGES IN ACTION OF THE DEMERGED COMPANY)

Stocks:

Sl. No.	Revenue Details	Land Area (in Acre)
1	50% Partnership Share in Lion Brand Poultries, Partnership Firm (holding 8.84 acres of Land in Gurgaon, Haryana)	

Investments:

Sl. No.	Name of Company	No. of Shares	Class of Shares and Face Value
1	----------NIL----------		

Details of Bank Account:

Particulars of Bank Accounts

Sl. No.	Name of Bank	Branch Address	Account Type & Number
1	ICICI Bank Limited	9A, Phelps, Connaught Place, New Delhi	Current Account-000705012296
2	Kotak Mahindra Bank	G-F 3A-3J Ground Floor, Amba Deep, 14, Kasturba Gandhi Marg, New Delhi	Current Account-2511729128

Particulars of Demat Accounts

Sl. No.	Details of Depository participant
1	----------NIL----------

For Rajdhani Investments & Agencies Private Limited

For Rajdhani Investments & Agencies Private Limited

Director

Rajiv Singh
Director
DIN: 00003214

COMPANY LAW TRIBUNAL AHMEDABAD BENCH